



Southampton Corporation Act 1971

CHAPTER xii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

SUPERANNUATION

4. Interpretation of Part II of Act.
5. Commencement of Part II of Act.
6. Benefits in certain cases of premature retirement.
7. Power to require designated sums to be paid to trustees.
8. Transfers of employment.
9. Extension of foregoing sections.

PART III

FINANCE AND MISCELLANEOUS

10. Power to borrow.
11. Expenses of investment of superannuation fund.
12. Policing and control of pedestrian ways.

Section

13. Inspection and certification of taximeters.
14. Amendment of fees.
15. Unification of law affecting Corporation's cemeteries.
16. Extension of power to maintain burial grounds.
17. For protection of Commonwealth War Graves Commission.
18. Further powers under section 21 of Southampton Corporation Water (No. 2) Order 1962.
19. Repeal of enactments.

PART IV

GENERAL

20. Local inquiries.
21. Evidence of proceedings, appointments, etc.
22. Restriction on right to prosecute.
23. Protection of members and officers of Corporation from personal liability.
24. Application of general provisions of Act of 1936.
25. Costs of Act.

SCHEDULES:

- Schedule 1—Trusts applicable to designated sums.
Schedule 2—Enactments applied to pedestrian way.
Schedule 3—Sections of Act of 1936 applied.

ELIZABETH II



1971 CHAPTER xii

An Act to repeal certain local enactments relating to Southampton Common; to make further provision for the improvement, local government and finance of the city and county of the city of Southampton; and for other purposes. [16th March 1971]

WHEREAS—

(1) The city and county of the city of Southampton (hereinafter referred to as “ the city ”) is a county borough under the government of the mayor, aldermen and citizens of the city (hereinafter referred to as “ the Corporation ”):

(2) Southampton Common is a common within the city and there are certain provisions in the Southampton Marsh and Markets Act 1865, and the Southampton Corporation Act 1931 1865 c. clxii. which do or may relate to that common and which it is expedient 1931 c. xcix. to repeal as in this Act provided:

(3) It is expedient to make further provision with reference to the improvement, local government and finance of the city:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Southampton Corporation Act 1971.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Superannuation.

Part III.—Finance and miscellaneous.

Part IV.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1933 ” means the Local Government Act 1933;

“ the Act of 1936 ” means the Public Health Act 1936;

“ the city ” means the city and county of the city of Southampton;

“ the Corporation ” means the mayor, aldermen and citizens of the city;

“ the council ” means the council of the city;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of any enactment;

“ magistrates' court ” has the same meaning as in the Magistrates' Courts Act 1952;

“ the town clerk ” means the town clerk of the city.

1936 c. 49.

1952 c. 55.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

SUPERANNUATION

4.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

“the Act of 1937” means the Local Government Super-annuation Act 1937; Interpretation of Part II of Act.

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

“death grant” and “transfer value” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 7 (Power to require designated sums to be paid to trustees) and section 8 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

5. This Part of this Act shall come into force on 1st September, 1971. Commencement of Part II of Act.

6.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment: Benefits in certain cases of premature retirement.

PART II
—cont.

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (a) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (b) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937, whether or not any payment has been made to him on account thereof.

1953 c. 25. (5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section "pensionable age" in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

PART II
—cont.

7.—(1) A contributor may at any time, by notice in writing to the Corporation given in such form as the Corporation may approve, direct—

Power to
require
designated
sums to be
paid to
trustees.

(a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the fund, with compound interest thereon; and

(b) that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as "the designated sum"), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Corporation (hereafter in this section and in the said Schedule 1 referred to as "the trustees") to be held upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts, and with and subject to the powers and provisions in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 1, "contributor" includes any person who, on or after the date of the coming into force of this Part of this Act, is a contributor to the fund, and "former contributor" shall be construed accordingly.

PART II
—cont.Transfers of
employment.

8.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State, and he may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of subsection (1) of this section.

PART II
—cont.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by 1948 c. 33. virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

9.—(1) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the last three foregoing sections of this Act, and of any scheme made under section 8 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

(2) An employing authority may make any such request to, and enter into and carry into effect any such agreement with, the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed by an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

(3) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

PART III

FINANCE AND MISCELLANEOUS

10.—(1) The Corporation may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

PART III
—cont.

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Expenses of
investment of
super-
annuation
fund.

11. All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, shall be paid by the Corporation out of that fund.

Policing and
control of
pedestrian
ways.

12.—(1) Where there is in the city a way or place laid out or otherwise suitable for public use on foot, the council may by resolution, with the prior consent in writing of all persons interested in the land comprising that way or place, declare it to be a pedestrian way.

(2) In this section and in the enactments specified in Schedule 2 to this Act as applied and having effect for the purposes of this section “pedestrian way” means a way or place declared to be a pedestrian way under the last foregoing subsection.

(3) For purposes of, or relating to, criminal law, and the jurisdiction of the justices and of the police, a pedestrian way shall be deemed to be a highway.

(4) The Corporation may make byelaws for regulating the following matters in relation to all pedestrian ways within the city or in relation to any such pedestrian way or any part thereof:—

- (a) the use of a pedestrian way by the public;
- (b) the times at which a pedestrian way may be closed to the public;
- (c) the conduct of persons using a pedestrian way;
- (d) the use of invalid chairs or other wheeled vehicles on a pedestrian way;
- (e) any structures or projections in or over any pedestrian way:

Provided that not less than two months before making byelaws in relation to any pedestrian way, or any part thereof, under this section, not being byelaws in relation to all pedestrian ways within the city, the Corporation shall display in a conspicuous

position on or adjacent to the pedestrian way a notice of their intention to consider the making of such byelaws, and such notice shall specify the place where a copy of the proposed byelaws may be inspected and the date by which any representations should be made to the Corporation (not being less than six weeks after the date on which the notice was first displayed as aforesaid), and the Corporation shall take into consideration any representations so made.

(5) Without prejudice to subsection (3) of this section the enactments specified in Schedule 2 to this Act shall apply and have effect for the purposes of this section as if each of those enactments were in terms re-enacted in this Act subject to the modifications set out opposite thereto in the said schedule.

(6) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

(7) (a) Nothing in any byelaws made under this section shall apply to prevent the undertakers or persons in their employ from executing and doing all such works and things in, under and upon any pedestrian way as may be necessary for the purpose of placing, inspecting, repairing, maintaining, renewing or removing any apparatus in, under, over, across, along or upon such pedestrian way or to restrict the bringing on to the pedestrian way of any necessary vehicle of the undertakers for any such purpose as aforesaid.

(b) In this subsection—

“ apparatus ” means—

(i) any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the Central Electricity Generating Board or the Southern Electricity Board;

(ii) mains, pipes or other apparatus belonging to or maintained by the Gas Council or the Southern Gas Board;

and includes any works constructed for the lodging therein of apparatus;

“ the undertakers ” means the Central Electricity Generating Board, the Southern Electricity Board, the Gas Council and the Southern Gas Board or any of them, as the case may be.

13.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the city to be tested and inspected and they may also require any such taximeter or other similar apparatus to be re-tested and re-inspected at such

Inspection
and
certification
of taximeters.

PART III
—*cont.*

reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding one pound in any one year shall be borne by the owner of the hackney carriage.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a fine not exceeding ten pounds.

(4) The Secretary of State may make an order by statutory instrument to vary the sum specified by subsection (1) of this section.

(5) An order made under the last foregoing subsection may be revoked or varied by a subsequent order made in like manner.

(6) Any statutory instrument containing an order under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Amendment
of fees.
1931 c. xcix.

14. Subsection (5) of section 132 (Music and dancing licences) of the Southampton Corporation Act 1931 is hereby amended as follows:—

(a) for the words “twenty shillings” there shall be substituted the words “five pounds”;

(b) for the words “five shillings” in both places where those words occur there shall be substituted the words “one pound”.

Unification of
law affecting
Corporation's
cemeteries.
1879 c. 31.

15.—(1) The cemeteries to which this section applies shall be deemed to have been provided by the Corporation under the Public Health (Interments) Act 1879 and the Act of 1936 and the provisions of those Acts shall apply to such cemeteries.

(2) The provisions of the Burial Acts 1852 to 1906, relating to the provision of burial grounds, shall cease to be in force with respect to any cemetery to which this section applies.

(3) Nothing in this section shall affect any right of burial or of constructing a place of burial which any person may have acquired prior to the passing of this Act or prejudicially affect the amount of any fee, payment or sum in respect of interment in, or the right of erecting or placing any monument, gravestone, tablet or monumental inscription on, any grave or place of burial in respect of which any such right has been so acquired.

(4) The cemeteries to which this section applies are the South Stoneham, Millbrook and St. Mary Extra cemeteries of the Corporation.

PART III
—cont.

16.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

Extension of
power to
maintain burial
grounds.

- (a) to put, and keep, in order any memorial therein;
- (b) to level any grave therein;
- (c) to remove the whole or any part of a memorial therein;
- (d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the Corporation shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the city, with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of such owner or relative can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Secretary of State unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months

PART III
—cont.

after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“memorial” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

For protection of
Commonwealth
War Graves
Commission.

17.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 16 (Extension of power to maintain burial grounds) of this

Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the Corporation shall—

PART III
—cont.

- (a) not later than the date upon which such notice is first published in a newspaper circulating in the city serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 16;
- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 16;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The Corporation shall not in pursuance of the powers of the said section 16 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty or licence of a consistory court after prior notification to the Commission of the application for any such licence or faculty;
- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Secretary of State under subsection (4) of the said section 16, the Corporation shall, not later than the date on which the matter is referred to the Secretary of State, inform the Commission in writing of such reference and the Secretary of State shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Secretary of State.

PART III
—*cont.*

Further powers under section 21 of Southampton Corporation Water (No. 2) Order 1962. S.I. 1962/537.

18. Where under the provisions of section 21 (Demanding and recovery of water rate by rating authorities) of the Southampton Corporation Water (No. 2) Order 1962, any council agrees with the Corporation to demand and collect any rates and charges such council may recover on behalf of the Corporation such rates and charges and any such rates and charges shall be recoverable by such council in the same manner and subject to the same provisions in respect of such recovery as the general rate.

Repeal of enactments. 1865 c. clxii.

19.—(1) In section 72 (Provision for keeping Common Lands always open) of the Southampton Marsh and Markets Act 1865 paragraph (C), including sub-paragraphs (A), (B), (C) and (D) thereof, is hereby repealed.

1931 c. xcix.

(2) Section 134 (Prohibition of vehicles on the Common) of the Southampton Corporation Act 1931 is hereby repealed.

PART IV

GENERAL

Local inquiries.

20.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

1946 c. 31.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

Evidence of proceedings, appointments, etc.

21.—(1) In proceedings under any enactment, a document purporting to be certified by the town clerk as a copy of a resolution passed, order made, or report received, by the council or a committee thereof on a specified date shall be evidence that that resolution, order or report was duly passed, made or received by the council or committee on that date.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the council or committee on that date.

(3) In this section “officer” includes a servant and an agent.

(4) Section 286 of the Act of 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the council and its committees.

PART IV
—cont.

22. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation or (in respect of an offence created by or under section 12 (Policing and control of pedestrian ways) of this Act) a constable.

Restriction on
right to
prosecute.

23. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Protection of
members and
officers of
Corporation
from personal
liability.

1875 c. 55.

24. The sections of the Act of 1936 mentioned in Schedule 3 to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application of
general pro-
visions of
Act of 1936.

25. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

Costs of Act.

SCHEDULES

Section 7.

SCHEDULE 1

TRUSTS APPLICABLE TO DESIGNATED SUMS

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 7 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the following trusts, and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof, or any part thereof, respectively to, or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

2. In addition to the powers conferred on them by virtue of paragraph 1 of this schedule during the said period of twenty-one years, the trustees may at any time pay or apply the designated sum and the income thereof, or any part thereof, respectively to, or for the benefit of, any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit.

3. Subject as aforesaid, the designated sum and the income thereof, or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' Estates Act 1952, or any statutory modification or re-enactment thereof in force at the

death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts, and subject to the conditions therein contained.

SCH. 1
—cont.

4. In this schedule “grandparents” and “issue” shall be construed as if the step-child, adopted child or illegitimate child of any person was that person’s child, and “issue” includes issue in any degree.

Section 12.

SCHEDULE 2

ENACTMENTS APPLIED TO PEDESTRIAN WAY

Chapter (1)	Short title (2)	Provisions applied (3)	Modifications (4)
7 & 8 Eliz. 2 c. 25	Highways Act 1959	Section 121 (Penalty for wilful obstruction) Section 127 (Penalty for depositing things, or pitching booths, etc., on highway) Section 140 (Penalty for causing certain kinds of danger or annoyance) Section 141 (Penalty for placing rope, etc., across highway) Section 142 (Prevention of water falling or flowing on to highway) Section 152 (Restriction on placing rails, beams, etc., over highways)	In subsection (1) for the word "highway" there shall be substituted the words "pedestrian way". Paragraph (a) shall be omitted; and in paragraphs (b) and (c) for the word "highway" wherever it occurs there shall be substituted the words "pedestrian way". For the word "highway" wherever it occurs there shall be substituted the words "pedestrian way" and in subsection (2) the words "which consists of or comprises a carriageway" shall be omitted. For the word "highway" in both places where it occurs there shall be substituted the words "pedestrian way". References to the appropriate authority shall be construed as references to the Corporation; for the word "highway" wherever it occurs there shall be substituted the words "pedestrian way"; and subsection (5) shall be omitted. In subsection (1) for the word "highway" there shall be substituted the words "pedestrian way"; for the words "highway authority for the highway" there shall be substituted the word "Corporation"; and the proviso to subsection (2) shall be omitted.

SCHEDULE 3

Section 24.

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

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